

26CHCV00400 26CHCV00400

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Case Number: 26CHCV00400 Hearing Date: August 21, 2026 Dept: F47

Dept. F47

Date: 8/21/26

Case #26CHCV00400

MOTION

TO COMPEL ARBITRATION

Motion filed on 4/17/26.

MOVING PARTY: Defendant Hyundai
Motor America

RESPONDING PARTY: Plaintiff Tanis
Gennean Hershkowitz

NOTICE: ok

RELIEF REQUESTED: An order:

(1) compelling Plaintiff to arbitrate all of Plaintiff's claims in accordance with the arbitration agreement and (2) staying this action pending the outcome of arbitration.

RULING: The motion is
granted.

SUMMARY OF FACTS &

PROCEDURAL HISTORY

This action arises out of Plaintiff Tanis Gennean

Hershkowitz's (Plaintiff) purchase of a 2023 Hyundai Elantra Hybrid (the Vehicle) on or about 5/28/23. (Complaint ¶8; Rao Decl. ¶4). The Vehicle was warranted by Defendant

Hyundai Motor America (Defendant).

(Complaint ¶9). On 6/5/23, Plaintiff

enrolled the Vehicle in Defendant's Bluelink service. (Rao Decl. ¶¶7, 18-19, Ex.A). To enroll in Defendant's Bluelink services, customers must agree to the then-effective Bluelink Connected Services

Agreement (CSA), the terms and conditions of which also include a binding

arbitration provision. (Rao Decl. ¶¶6,

20, Ex.B).

Plaintiff contends that the Vehicle suffers from defects

and nonconformities to warranty; that Plaintiffs delivered the Vehicle to

Defendant's authorized repair facility for repair and Defendant was unable to

conform the Vehicle to the applicable express warranty after a reasonable

number of repair attempts. (See

Complaint ¶¶10-14, 22, 27-28). Further,

Plaintiff alleges that despite the foregoing, Defendant has failed to replace

the Vehicle and/or provide Plaintiff with restitution as required under the Song-Beverly

Act. (Complaint ¶29). Therefore, on 1/29/26, Plaintiff filed this

action against Defendant for: (1) Violation of Song-Beverly Act - Breach of Express Warranty, (2) Violation

of Song-Beverly Act – Breach of Implied Warranty and (3) Violation of

Song-Beverly Act – Civil Code 1793.2.

On 4/17/26, Defendant requested that Plaintiff stipulate

to arbitration; however, Plaintiff has not agreed to submit the claims to

arbitration. (Park Decl. ¶2). Therefore, on 4/17/26, Defendant filed and

served the instant motion seeking an order compelling Plaintiff to arbitrate

all of Plaintiff's claims pursuant to the arbitration agreement and staying

this action pending the outcome of the arbitration. Plaintiff has opposed the motion and

Defendant has filed a reply to the opposition.

ANALYSIS

Plaintiff's Request for Judicial

Notice is granted.

Plaintiff's objections, numbers 1-2,

to the declaration of Vijay Rao are overruled.

Defendant's objections, numbers 1-5, to
the declaration of James L. Carroll are overruled.

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Defendant moves to compel
arbitration based on the agreement to arbitrate contained in the Bluelink
Connected Services Agreement (CSA).

Bluelink
Connected Services Agreement

Defendant's Bluelink services
refers to a connected car system that includes various functions and
features. (Rao Decl. ¶5). To enroll in Defendant's Bluelink services,
customers must agree to the then-effective Connected Services Agreement
(CSA). (Id. at ¶6). Defendant makes a copy of the CSA available
to every customer who enrolls in the Bluelink services plan. Id.

In order for Plaintiff to have
enrolled in Defendant's Bluelink services, Plaintiff would have had to click a
box to acknowledge that they "read and agree[d] to the Blue Link Terms &
Conditions" and then click the "Complete" button. (Id. at ¶11). The phrase "Terms & Conditions" included
a hyperlink to the CSA. Id. As presented to Plaintiff, the box
acknowledging the Terms & Conditions would not have been "prepopulated"
with a check mark. Id. Plaintiff would have had to click that box to
acknowledge assent to the CSA. Id. A customer cannot activate Bluelink services
through the Dealer-Assisted Enrollment process unless they complete the step
requiring them to click the box acknowledging they agree to the Bluelink Terms
and Conditions. Id. On 6/5/23, Plaintiff enrolled the Vehicle in
Bluelink services. (Id. ¶¶7,
18-20, Ex.A, B).

The CSA that was in effect at the
time of Plaintiff's purchase of the Vehicle includes an "Arbitration Agreement"
which provides:

“(a) Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, your Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law.

[...]

The agreement to arbitrate otherwise includes, but is not limited to: claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising) [...]

(Rao Decl., Ex.B, Section 14.C, p.9 (pdf 19)).

“[F]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” Condee (2001) 88 CA4th 215, 218. Rather, the Court must only find that the agreement exists, not make an evidentiary determination of the agreement’s validity. Id. at 219. The Court finds that Defendant has properly established the existence of the agreement to arbitrate through the Rao declaration and the fact that Plaintiff does not state that Plaintiff did not enroll in Bluelink Connected Services through the CSA which includes the arbitration agreement at issue.

The Federal Arbitration Act (FAA) applies to a written arbitration agreement in a contract involving commerce. See 9 U.S.C. §2. Here, the arbitration provision is written in the CSA and automotive sale contracts necessarily involve interstate commerce because even when used intra-state, “cars are themselves instrumentalities of interstate commerce.” See *United States v. Oliver* (9th Cir. 1995) 60 F.3d 547, 550; *Sanchez* (2015) 61 C4th 899, 906; (Rao Decl., Ex.B, p.9

(pdf 19)). Additionally, the CSA states that "This Agreement evidences a transaction in interstate commerce, and thus the Federal Arbitration Act governs the interpretation and enforcement of this arbitration provision." (Rao Decl., Ex.B, Section 14.C., p.9 (pdf 19)). As such, the FAA controls. See Rodriguez (2006) 136 CA4th 1110, 1122. Under the FAA, an arbitration agreement is "valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." 9 U.S.C. § 2. Here, no grounds exist to revoke the arbitration agreement.

Under California law, the arbitration agreement is also valid. On petition of a party to an arbitration agreement alleging the existence of a written arbitration agreement and that a party to the agreement refuses to arbitrate the subject controversy, the court shall order arbitration if it determines that an agreement to arbitrate exists. CCP 1281.2. Again, a written agreement to arbitrate exists and Plaintiff has refused Defendant's request to submit this matter to arbitration. (Park Decl. ¶2; Rao Decl., Ex.B, Section 14.C.). Under California law, the Court must compel arbitration unless it finds that the right to compel arbitration has been waived by Defendant or grounds exist for revocation of the agreement. See Condee (2001) 88 CA4th 215, 219. Here, there is no evidence that Defendant has waived its right to arbitration nor is there evidence of any ground for revocation of the agreements.

As such, Defendant may move to compel arbitration under the FAA (9 U.S.C. §§1-16) and the California Code of Civil Procedure (CCP 1281, et seq.).

Both Defendant and Plaintiff have agreed to arbitrate the disputes which are the subject of this action.

The Bluelink CSA provides a basis for Defendant to compel Plaintiff to arbitrate the disputes. A customer accepts a "clickwrap" or "clickthrough" agreement's terms, even in the absence of evidence that the customer has read the terms of the agreement. See Wiseley (9th Cir. 2017) 2017 WL 4150341; Ftjea (S.D.N.Y. 2012) 841 F.Supp.2d 829, 837; Berman (9th Cir.

2022) 30 F.4th 849, 856-857; Oberstein (9th Cir. 2023) 60 F.4th 505, 513; Foster (8th Cir. 2021) 15 F.4th 860, 863. Plaintiff has not submitted a declaration disputing that she signed up for the Blue Link Connected Services. (See Rao Decl.). Further, contrary to Plaintiff's assertion, the arbitration in the Bluelink CSA is broad enough to apply to Plaintiff's claims.

All of Plaintiff's claims arise out of the Vehicle's Warranty. The arbitration provision in the Bluelink CSA states that the parties agree to arbitrate any and all disputes and claims between them relating to the Vehicle and that the agreement is "intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law" and that the arbitration provision includes claims based in contract, statute, and warranty, including those that arose prior to the execution of the CSA. (See Rao Decl., Ex.B, p.9 (pdf 19)). Plaintiff's argument that the Bluelink CSA illegally allows Defendant to recover attorney's fees is without merit. The provision merely states that the parties would be entitled to recover attorney's fees pursuant to the same extent as in court. Therefore, if Defendant would be precluded from recovering attorney's fees in a court action, the same law would apply in arbitration.

Plaintiff has failed to establish that the arbitration agreements at issue is unconscionable. To invalidate a contract based on unconscionability, Plaintiffs must establish both procedural and substantive unconscionability. Armendariz (2000) 24 C4th 83, 114.

The agreement is not procedurally unconscionable. Contracts of adhesion are generally deemed to be procedurally unconscionable. See OTO, L.L.C. (2019) 8 C5th 111, 126. However, the adhesive nature of a standardized agreement is not dispositive. See Sanchez (2015) 61 C4th 899, 915-916. Rather, courts must evaluate the circumstances under a sliding-scale approach: where procedural unconscionability is minimal, the opposing party must make a correspondingly

stronger showing of substantive unconscionability. *Id.*

At most, minimal procedural unconscionability can be said to exist in this case. Plaintiff enrolled in the CSA through a checkbox that directly linked to the CSA, providing access to the agreement's complete terms before assent. Plaintiff has not provided a declaration or other evidence establishing that she failed to read Section 14. C. "Binding Arbitration" of the CSA, was unaware of its arbitration requirement, or was prevented from reviewing the CSA before accepting BlueLink. The arbitration provision itself begins with a paragraph in all capital letters which reflects the importance of its contents. Regardless, California law does not require a dealership to separately highlight or call attention to an arbitration clause. See *Sanchez*, *supra* at 914–915. Further, the BlueLink services are optional. (Rao Decl. ¶15).

Nor is the agreement substantively unconscionable. Public policy favors arbitration. See *Brodke* (2008) 160 CA4th 1569, 1577. Moreover, arbitration agreements have been held to be valid and enforceable with regard to claims under the Song-Beverly Act. *Sanchez*, *supra* at 909-910. Plaintiff's argument that regarding the reduced limitations period in the CSA rendering the arbitration provision unconscionable is without merit as the provision provides that it applies "EXCEPT WHERE PROHIBITED BY LAW." (Rao Decl., Ex.B, Section 14. B., p.9 (pdf 19)). Similarly, as noted above, the provision regarding Defendant recovering attorney's fees in the CSA merely states that the parties would be entitled to recover attorney's fees pursuant to the same extent as in court. As such, if Defendant would be precluded from recovering attorney's fees in a court action, the same law would apply in arbitration.

CONCLUSION

The motion is granted. The action is stayed pending the outcome of the arbitration. 9 U.S.C. §3; CCP 1281.4.

The Court notes that in violation

of CRC 3.1110(f)(4), counsel for both parties have failed to properly electronically bookmark the exhibits attached to the declarations filed in support of their papers. Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be re-filed in compliance with the rule, papers not being considered and/or the imposition of sanctions.